

4.	30-2025-01476022-CU-BC-CJC Jerisat vs. Young	Before the Court is a motion for a Protective Order (“Motion”) brought by defendant Steven Young (“Defendant”) against plaintiff Martin Jerisat (“Plaintiff”). ROA 139. The Court notes that the only remaining issue regarding the instant Motion is sanctions. ROA 282. Defendant seeks the imposition of monetary sanctions in the amount of \$4,850.00 on Plaintiff. ROA 139. Plaintiff requests that the Court impose monetary sanctions on Defendant in the amount of \$1,500.00. ROA 183. I. Sanctions re: Motions for Protective Order California Code of Civil Procedure sections 2017.020 and 2033.080, state that “[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2017.020(b), 2033.080(d). “The term ‘substantial justification’ means a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011)). To avoid sanctions a party “may show ‘substantial justification’ for his or her position – i.e., a rational basis to conclude that the party’s failure to fulfill its discovery obligations was justified.” <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Prop. v. Lyon/Copley/Corona Assocs.</i>, 46 Cal. App. 4th 1542, 1577 (1996)). The Court “<i>must</i> make an explicit finding this [substantial justification] exception exists,” however, “the court need not make an explicit finding the [substantial justification] exception does not exist” <i>Parker v. Wolters Kluwer U.S.</i>,
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	<i>Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Here, the Court finds no substantial justification in fact or law for Defendant’s instant Motion. Accordingly, monetary sanctions are mandatory. II. Assigning Liability for Monetary Discovery Sanctions California Code of Civil Procedure section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or an attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal Civ. Proc. Code § 2023.030(a). When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed
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	upon them. <i>See Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations shows attorney attempted to convince client to comply). If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See generally Cornerstone, supra</i>, 56 Cal. App. 5th at 799. "An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney's actions were in some way improper and contributed to the disobedience of the court order." <i>Corns, supra</i>, 181 Cal. App. 3d at 200. Illustrating this point, the <i>Ghanooni</i> court reversed a lower court's order imposing sanctions on both the client and the attorney and instead ordered sanctions only against the client. <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 256. The court found that counsel's mere opposition to a motion to compel X-rays from their client did not give rise to an inference that counsel advised disobedience in the first instance, where the client's refusal was attributable to their generalized fear of exposure to radiation, which is not sufficient justification to refuse a motion to compel. <i>Id.</i>; <i>see Kwan, supra</i>, 58 Cal. App. 5th at 83. Here, the Court finds that the filing of the instant Motion is not attributable to client misconduct. Indeed, the Court finds that the record shows the misconduct is attributable to Defendant's counsel of record. However, because Plaintiff's opposition to Defendant's instant Motion does not place Defendant's counsel of record on notice, the Court finds that the imposition of warranted sanctions at this juncture would violate due process. Accordingly, Defendant's Motion is DENIED and Plaintiff's request for the imposition of sanctions upon Defendant is also DENIED.
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